

Main Identity

M-1977-341

CT-Citizen Complaint
12-2-03

From: "Terry Parrish" <parrish@direcpc.com>
To: "Erica Crosby" <erica.crosby@state.co.us>
Sent: Monday, December 01, 2003 12:33 PM
Attach: IM000648.JPG; IM000647.JPG
Subject: Revegetation of Cemex land, Larimer Quarry TR request

Erica,

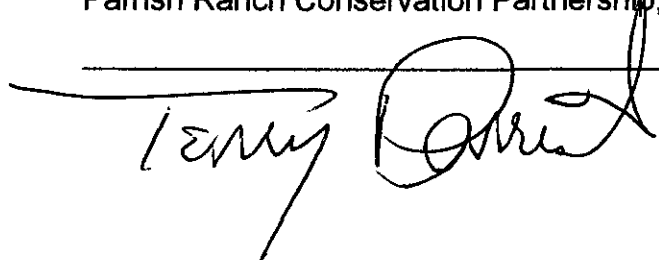
This is followup to our telephone conversation this AM. The Parrish Ranch Conservation Partnership, new owners of the land, do not agree that "revegetation" has occurred as stated in the TR from Cemex to the State of Colorado of July 31, 2003. They did bring in new soil from some location which should restabilize the land. However Cemex did not plant any grass seed through the entire growing season. The areas are now overgrown with vine weed and some yellow flowered weed that is shown in the pictures accompanying this e-mail. The land which was not redone is grassy, albeit limited growth, with no vine weed or the yellow flowered weed.

Additionally, Parrish Ranch still maintains that the large chunks of rock that were rolled over the edge and down into the draw and waterway as we discussed during your inspection in the spring, should be cleaned up by Cemex before release of the bond. We sent the State a letter just after that time with accompanying pictures to show the damage we've discussed. I'm going to re'send a couple of those pictures now, but they will be in a following separate e-mail. (The pictures are in a different software package).

As to roads. They actually are not essential to ranch operations, but they may have limited potential for future development. We thought that the letter agreeing to leave the roads in place, was our side of a quid pro quo. We really want Cemex to spend effort and dollars where necessary to adequately refurbish and revegetate the land, and potentially to move some of the large rocks discussed earlier.

Thank you for your consideration. I've not sent these to Cemex as I don't have an e-mail for them, but feel free to forward them if you have one.

Sincerely, Terry Parrish
Parrish Ranch Conservation Partnership, LLLP



12-2-03

12/2/2003

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From: "Crosby, Erica" <erica.crosby@state.co.us>
To: "Terry Parrish" <parrish@direcpc.com>
Cc: "Maureen Jacoby (E-mail)" <mjacoby@banksandgesso.com>; "Mount, Carl" <carl.mount@state.co.us>
Sent: Monday, December 01, 2003 2:47 PM
Subject: RE: Revegetation of Cemex land, Larimer Quarry TR request

Mr. Parrish,

I received your 2 e-mails regarding the Cemex Larimer Quarry, Permit No. M-1977-341. I will forward these e-mails to Banks & Gesso (the consultants working on TR-01 of the above mentioned application).

The Division cannot formally act on your e-mails unless you send us a signed version of the letter. The Attorney General's Office will not allow us to accept complaint letters in the form of an e-mail, because the letter must be signed. You can print out what you e-mailed me (w/photos), sign it, and mail it to:

Division of Minerals & Geology
 1313 Sherman Street, Rm. 215
 Denver, CO 80207

Once we receive a signed copy of your letter, we will conduct an inspection within 30-days (weather permitting) and determine if any action must be taken by CEMEX. If you do not agree with the DMG's decision, you can appeal it to the Mined Land Reclamation Board during one of the monthly hearings.

Let me know if you have any other questions.

Erica S. Crosby
 Environmental Protection Specialist

Division of Minerals & Geology
 1313 Sherman St. Room #215
 Denver, CO 80203
 303-866-4943
 erica.crosby@state.co.us

RECEIVED

DEC 1 0 2003

Division of Minerals and Geology

-----Original Message-----

From: Terry Parrish [mailto:parrish@direcpc.com]
Sent: Monday, December 01, 2003 12:34 PM
To: Erica Crosby
Subject: Revegetation of Cemex land, Larimer Quarry TR request

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Parrish Ranch Conservation Partnership, LLLP





Main Identity

From: "Terry Parrish" <parrish@direcpc.com>
To: "Erica Crosby" <erica.crosby@state.co.us>
Sent: Monday, December 01, 2003 1:17 PM
Attach: IM000096.JPG; IM000101.JPG; IM000104.JPG; IM000099.JPG; IM000094.JPG; IM000059.JPG
Subject: Cemex rocks

Erica,

These are the rocks which we believe should be cleaned up, at least to a practical and functional extent, by Cemex. These were rolled, blown, or pushed into the draw over the hill from the Cemex mining operation. Please attach these pictures to the other e-mail I sent earlier today.

Sincerely,
Terry Parrish

Terry Parrish 12-2-03



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